

ORDINANCE NO. \_\_\_\_\_

ENTITLED: "AN ORDINANCE AMENDING CERTAIN SECTIONS OF CHAPTER 44, SOLID WASTE, AND CHAPTER 56, NOISE CONTROL, OF TITLE 8, HEALTH AND SAFETY, AND FURTHER AMENDING CERTAIN SECTIONS OF CHAPTER 8, OFFENSES AGAINST PUBLIC PEACE AND DECENCY, AND CHAPTER 12, OFFENSES AGAINST PROPERTY, OF TITLE 9, PUBLIC PEACE AND WELFARE, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO ELIMINATE THE POTENTIAL IMPOSITION OF A JAIL SENTENCE FOR VIOLATION OF SPECIFIED CODE PROVISIONS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 8.44.010, Purpose—Authority—General provisions, and Section 8.44.030, General Regulations, of Chapter 8.44, Solid Waste, and Section 8.56.010, Prohibited When Excessive, of Chapter 8.56, Noise Control, of Title 8, Health and Safety, of the City of Cheyenne, Wyoming, are hereby amended as set out in this section:

**8.44.010 - Purpose:** ~~—Authority—General provisions.~~ **authority; general provisions.**

- A. The purpose of this chapter is to protect public health, safety, and welfare by regulating the accumulation, storage, transportation, and disposal of solid waste or refuse to prevent fire, health or other safety hazards, to eliminate undesirable pests, and to promote the aesthetic appearance of the community.
- B. Authority is granted cities and towns in ~~Wyo. Stat. Sections~~ W.S. 15-1-103(a)(xxi) and (a)(xli) to adopt ordinances, resolutions and regulations necessary for health, safety and welfare and to "purchase, lease or rent land within or without the corporate limits for the deposit of refuse matter, govern the use of the land and make reasonable rules and requirements for hauling refuse."
- C. All solid waste accumulated in the city must be collected, conveyed and disposed of by the city under the supervision of the director of the public works ~~director, department or designated representative.~~ his or her designee.
  1. The public works director is authorized to ~~create~~ promulgate rules ~~and regulations~~ pertaining to solid waste collection, conveyance, and disposal ~~pursuant to~~ in accordance with the Wyoming Administrative Procedure Act. The public works director ~~will~~ shall present the fee schedule to the city council for approval.
  2. Except as provided in Section ~~8.44.030(E)(6), 8.44.030(G)(7) of this chapter and as further provided in this paragraph,~~ all solid waste accumulated in the city shall be collected, conveyed, and disposed of by the city. No person, other than persons duly authorized by the city, may collect, convey over any of the streets or alleys of the city,

or dispose of, any solid waste accumulated in the city, ~~except that a private individual may convey~~ The prohibitions imposed under this paragraph shall not apply to any person conveying excess solid waste generated at his or her residence to the Happy Jack landfill or to the transfer station, subject to the fees, limitations and requirements of this chapter.

3. This chapter does not prohibit collectors of solid waste generated or collected outside of the city from hauling such solid waste over city streets, ~~provided that the collectors comply with the provisions of this chapter and with any other applicable law or ordinance.~~
  4. Mandatory recycling is in place for all residential properties including single family homes, apartments, multiplex dwellings, trailer courts or any other properties-property that ~~serve~~ serves a residential customers-customer. Commercial collection of recyclables is offered, but not yet mandatory.
- D. It is ~~assumed-presumed~~ that each residence or building in the city produces solid waste. Therefore, each residence or building ~~must~~ shall subscribe to and pay for city solid waste services. For buildings in which one (1) or more businesses operate, city solid waste services ~~will~~ shall be assessed on a per dumpster and per pickup basis. Each of these buildings ~~will~~ shall be assessed a charge based on the number of dumpsters and the number of pickups utilized, regardless of how many businesses are operating within the building.
- E. ~~An owner(s)-Any property owner~~ may terminate solid waste services if the residence or building is vacant, unused, ~~or there have been changes made which to the property that detrimentally~~ affect the use or occupancy of the property, by filing a written request with the solid waste division to terminate, suspend, ~~or change services.~~ An affidavit form is available at the transfer station. This form, when signed and notarized, ~~will~~ shall meet ~~this requirement-the requirements imposed under this subsection.~~ Adjustments will be made upon receipt of a completed form by the solid waste division. ~~Owner(s)-must~~ The owner shall also notify the solid waste division immediately of any changes to the property after the affidavit is signed. If notification is not made, the solid waste division is authorized, at its discretion, to charge for the entire period back to the change date specified in the original affidavit. Customers bear the burden ~~to ensure-of ensuring~~ correct billing for services provided. Warranted adjustments for past billing errors ~~will~~ shall be limited to no more than sixty (60) days from customer's notification of the error to the solid waste division.
- ~~E.-F.~~ F. Charges for the collection of garbage and refuse ~~must~~ shall be paid by the owner or occupant of every ~~premise(s)-premises~~ from which garbage and refuse is collected. ~~These Collection~~ charges will be included in water and sewer bills issued by the board of public utilities.
- ~~F.-G.~~ G. Waste generated outside the city ~~may~~ shall not be brought into the city for disposal. Waste generated outside the city is prohibited from being placed into ~~alleys-any alley,~~ vacant ~~lots, lot, or~~ residential or commercial ~~containers-container~~ within the city, ~~(including those-any container~~ located in ~~parks-a park~~ or other city ~~facilities)-facility.~~ County residents

may use private haulers or dispose of waste at the transfer station. This ~~paragraph does~~ subsection shall not prohibit collectors of recyclable material generated or collected outside the city from bringing such material into the city and placing it into the blue bin containers or dropping it at the transfer station, ~~;~~ subject to the fees, limitations and requirements of this chapter. Recyclable material generated or collected outside the city ~~may shall~~ not be placed into residential or commercial recycle containers inside the city ~~nor and~~ may ~~they~~ not be placed outside blue bin containers if those containers are full.

#### 8.44.030 – General regulations.

##### A. Littering and Improper Disposal.

1. No person ~~may shall~~ throw, drop, or deposit refuse upon any street, alley, sidewalk, ~~or any~~ yard, or otherwise upon any premises, public or private~~;~~
2. No person ~~may shall~~ place refuse upon another person's private property~~;~~
3. No person shall place accumulations of household, business, or construction waste in containers or dumpsters owned or rented by other individuals, businesses, or government entities~~;~~
- ~~3.~~ 4. No person ~~may shall~~ place refuse in any street, alley, or other public place except in proper containers for collection or ~~under upon the~~ express written approval granted by the director of the public works ~~director. department; and~~
5. No person shall throw or deposit any solid waste in any stream or other body of water within the city.

##### B. The owner of ~~the any~~ property where waste is generated ~~is shall be~~ responsible for the disposal of the waste regardless of whether the owner resides on or otherwise occupies the property.

##### C. The ~~owners owner~~ or ~~occupants occupant~~ of any store or other place of business situated within the city ~~will shall~~ exercise reasonable diligence at all times to keep their business premises clean of refuse, ~~such as wastepaper, wrapping paper, paper napkins, cartons, package containers, glass bottles, broken glass fragments, cups, cans, tobacco product waste, and other use~~ or other waste materials thrown or left on the premises by ~~its business~~ customers or any other person, and shall take reasonable measures to prevent the same from blowing to adjoining premises.

##### D. If ~~owners or occupants fail~~ a business owner or occupant fails to keep their premises or an adjoining premises clean, as required under subsection (C) of this section, the city ~~may is~~ authorized to arrange for cleanup of the premises and may bill the owner for the cost of the service. Receptacles of sufficient size and number ~~must shall~~ be placed on the premises, and be accessible to customers of the business or any other person on the premises, for the disposal of waste.

~~E.~~ No ~~customer or other~~ person shall dispose of refuse on a business property, except refuse generated on the property and ~~then~~ only in receptacles located on the property for such ~~purposes~~ purpose.

~~D.~~ ~~F.~~ No ~~owner, manager, employee or agent thereof of any store or other place of business shall throw, sweep or push~~ dirt, rubbish, or refuse ~~of any kind may be thrown, swept, or pushed~~ into ~~the any~~ street, alley or sidewalk adjacent to ~~any the~~ store or ~~place of business by the owner, manager, or any employee or agent thereof.~~ Each business establishment shall be ~~held~~ responsible for keeping the adjacent property and sidewalks of ~~such building the business~~ free of ~~any accumulation of~~ dirt, ~~paper, or~~ rubbish, ~~which, when so removed, or refuse, and any such dirt, rubbish or refuse~~ shall be taken ~~up~~ and deposited with other refuse from ~~such establishment the business.~~ The owner or manager of ~~such the~~ business shall be held liable for any violation of this ~~section subsection~~.

~~E.~~ ~~G.~~ Containers.

1. All solid waste ~~must shall~~ be placed in city approved containers. When stored in the right-of-way adjacent to ~~streets and alleys, any street or alley,~~ waste ~~must shall~~ be kept in city approved metal or plastic containers that are resistant to animals and wind. Plastic or paper bags containing refuse ~~may shall~~ not be placed on the street or alley prior to 4:00 p.m. of the day prior to the designated collection day.
2. Businesses with Manual Collection Service. Solid waste containers ~~will shall~~ be provided by the city for the premises. Non-approved containers set out with refuse or containing refuse ~~will shall~~ be considered part of the refuse and the city may ~~be removed remove the non-approved containers~~ for disposal in its discretion. Paper or other bags may be used as approved by the director of the public works ~~director department~~. Containers or bags shall not exceed a weight of forty (40) pounds when full.
3. Residences or Businesses with Automated Collection Service. The city ~~will shall~~ provide customers with ~~a sufficient~~ standard collection ~~container(s) containers~~ compatible with automated collection equipment. Only containers provided by the city ~~will shall~~ be used for automated collection. The city ~~is shall be~~ responsible for repair and replacement of containers damaged or worn as a result of normal use. The solid waste division ~~may is authorized to~~ require customers to pay for the repair or replacement of ~~containers any container~~ damaged or destroyed through customer negligence.
4. Every container or receptacle required by this chapter ~~must shall~~ be maintained by the customer in a clean and sanitary condition, ~~and be cleaned as needed.~~ If ~~not, a customer fails to keep the container or receptacle in a clean and sanitary condition,~~ the solid waste division ~~may is authorized to~~ clean the container or receptacle and ~~assess the charge the customer an~~ appropriate fee.

5. Businesses with manual collection ~~are responsible~~ shall be liable for damages caused by any unsecured containers.
6. Businesses ~~are required to~~ shall have a trash containment area, ~~to obstruct which shall secure all containers and receptacles and keep all refuse and the containers and receptacles out of the~~ view ~~and to secure containers of the general public.~~
- 6.—7. Prior to placement of any waste collection roll-off ~~containers~~ container within the city limits, a commercial ~~(private)~~ or otherwise private hauler ~~must~~ shall provide to the director of the city public works ~~director, department, or his or her~~ designee, a written report ~~containing the following: identifying the~~ name of company, the address of company, a primary contact ~~name, and~~ contact information for the company, (during and after business hours), and shall provide a description of the roll-off containers, including the color scheme, the number and size. ~~Each~~ Every container shall be clearly marked with the company's name and business phone number prior to placement. ~~Commercial (private) haulers~~ Each commercial or otherwise private hauler shall provide the written report required under this paragraph upon the creation of the business ~~startup~~ and annually thereafter not later than January 31st of each year. Failure to provide ~~this the~~ report ~~could may~~ result in a suspension of roll-off container privileges for the period of up to one (1) year. Failure to comply with the container marking requirements ~~of imposed under~~ this paragraph ~~could may also~~ result in the removal and disposal of ~~unmarked/unreported containers.~~ any unmarked container.
- F.—H. Residents and businesses ~~are~~ shall be responsible for controlling all waste until it is picked up by the solid waste division. Receptacles ~~must~~ shall be kept closed except during the collection or deposit of garbage, trash, or refuse. The contents of all receptacles ~~must~~ shall be protected so that wind and animals cannot scatter the contents. All waste placed in containers, ~~(except yard waste and single stream recycle material, )~~ must shall be bagged to prevent ~~litter the waste~~ from being scattered when the container is emptied or ~~blown if tipped~~ over. If waste is scattered by wind or by animals, ~~or the wind,~~ the solid waste division may clean up the litter waste and charge the resident or business an appropriate fee.
- G.—I. Materials placed in recycling containers ~~must~~ shall not be ~~bagged deposited~~ in plastic bags. ~~Plastic bags contaminate the load. Recyclable materials should be~~ and shall be placed loosely in ~~receptacles the recycling container.~~ Shredded material or other small paper items may be ~~placed first deposited~~ in recyclable paper bags before being placed in the recycling container.
- H.—J. ~~The provisions of this~~ This section ~~do~~ shall not prohibit any ~~business or institution~~ person from using a city approved large watertight container for the storage of garbage, which container is designed to be loaded mechanically into roll-off containers. ~~These containers must~~ Every container shall be approved by the director of the public works ~~director department~~ and be compatible with city collection equipment. Only containers issued by the city ~~will~~ shall be used for automated collection.

~~I.—K.~~ Any unauthorized accumulation of solid waste on any premises ~~is declared to be a~~ shall constitute a nuisance and is hereby prohibited.

~~J.—L.~~ No agent, officer, or employee of the ~~city~~ solid waste division, ~~may~~ shall interfere with, disturb, break, destroy, or trespass upon any property except as necessary ~~in the work~~ of for the collection and removal of solid waste. No agent, officer or employee of the city ~~may~~ shall remove or take any article or refuse for their own use. City collection personnel ~~are not permitted to~~ shall not enter houses ~~and or~~ buildings for the collection of solid waste without the prior knowledge and approval of the director of the public works ~~director~~ department or ~~designated representative. his or her designee.~~ No agent, officer or employee of the city ~~may~~ shall accept any money, property or other valuable consideration for the performance of solid waste collection services, except such salary and benefits as authorized by city ordinance or personnel policies.

M. Any person who violates this section is guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars (\$750.00). Each day of a continuing violation shall constitute a distinct and separate offense.

## **Chapter 8.56 – NOISE CONTROL**

### **8.56.010 – Prohibited when excessive; penalty.**

~~A. The making and creating of an~~ No person shall make or otherwise create excessive or unusually loud noise within the city as heard without measurement or heard and measured ~~in a manner prescribed herein, is hereby declared to be unlawful; as provided by Section 8.56.040 of this chapter,~~ except when made under and in compliance with a permit issued ~~pursuant to under~~ Section 8.56.060 of this chapter.

B. Any person who violates subsection (A) of this section is guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars (\$750.00).

Section 2. That Section 9.08.010, Disturbance of the Peace and Disturbance of Property, and Section 9.08.100, Loitering, of Chapter 9.08, Offenses Against Public Peace and Decency, and Section 9.12.020, Motor Vehicles on Grass, Turf, Beached in Public Parks or Ground Prohibited – Exception, and Section 9.12.060, Shoplifting, of Chapter 9.12, Offenses Against Property, Shoplifting, of Title 9, Public Peace and Welfare, of the City of Chynne, Wyoming, are hereby amended as set out in this section:

## **Chapter 9.08 – OFFENSES AGAINST PUBLIC PEACE AND DECENCY**

### **9.08.010 - Disturbance of the peace and disturbance of property.**

A. No person shall cause, or be instrumental in causing, any disturbance of the peace in the city. ~~Any A~~ person or assemblage of persons shall be deemed guilty of disturbance of the peace if they ~~;~~ shall:

1. Discharge any ~~gun, pistol, revolver or any~~ firearm, ~~of any description,~~ or explode or set off any squib, firecracker, ~~or other things-thing~~ containing powder or other combustible material or make any other ~~improper~~ noise ~~calculated~~ intended to disturb the peace of anyone in the area;
  2. Operate any vehicle, machinery; or other equipment; ~~or vehicle which that~~ emits loud noise and thereby disturbs the peace and tranquility of any person;
  3. ~~Be-As~~ the owner ~~of,~~ or possessor of; a dog, ~~which barks-allow the dog to bark~~ excessively and ~~disturbs-disturb~~ the peace and tranquility of any person; ~~in the area;~~
  4. Cause, provoke or engage in any fight, ~~brawl~~ or riotous conduct ~~so as to that~~ endanger endangers the life, limb, health or property of another person;
  5. Commit an act in a violent or tumultuous manner toward another person ~~whereby where~~ ~~that the~~ other person is placed in danger of his or her life, limb or health;
  6. Use profane, obscene, ~~or~~ offensive or otherwise provocative language directed toward another person, ~~or others, and calculated~~ which language is intended to provoke a breach of the peace. For purposes of this section, ~~the term~~ "provocative language" shall mean insulting words or ~~fighting words~~ ~~or~~ those words by which their very utterance ~~inflict injury or~~ tend to incite an immediate breach of the peace;
  7. Perform any act or gesture of rude, improper or indecent behavior, directed at another person and ~~calculated~~ intended to provoke a breach of the peace;
  8. Incite or attempt to incite a riot. For purposes of this ~~section, subsection,~~ the term "riot" shall mean a tumultuous disturbance of the peace by persons assembled and acting with common intent to the terror of the people of the city, either in assemblage while executing a lawful enterprise in a violent or turbulent manner or in assemblage while executing an unlawful enterprise in a violent or turbulent manner; or
  9. Urinate in any ~~public way or~~ place ~~which that~~ is public in nature or ~~any place~~ open to the public view.
- B. No person shall cause; or be instrumental in causing; any disturbance of property in the city. Any person or assemblage of persons shall be deemed guilty of disturbance of property if they: ~~shall:~~
1. Throw any stone or other missile at any person, animal, vehicle, building or other private or public property;
  2. Take and carry away the personal goods of another person or public property without consent of the owner or lawful possessor;
  3. Enter or remain upon another's property without consent of the owner or possessor; or

4. Commit an act in a violent or tumultuous manner toward another whereby the property of another person or public property is interfered with, damaged, ~~or~~ destroyed, or placed in danger of being interfered with, damaged or destroyed.

C. Except as otherwise provided by this subsection, any person who violates this section shall be guilty of a misdemeanor punishable as provided by Section 1.24.010 of the city code. Notwithstanding, any person who violates paragraph (A)(2) or (A)(3) of this section shall be guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars (\$750.00).

#### **9.08.100 – Loitering; ~~penalty.~~**

A. ~~It is unlawful for any person to~~ No person shall loiter in the city. A person is guilty of loitering when he or she:

A. ~~1. Loiters, or remains~~ Remains in or about a school not having any reason or relationship involving custody of or responsibility for a ~~pupil or~~ student, ~~or lacks~~ any other specific, legitimate reason for being there; and does not ~~having have~~ written permission from anyone authorized to grant the same; or

B. ~~2. Loiters, remains~~ Remains or wanders in or about a building, lot, street, sidewalk, or any public or private place without apparent reason and under circumstances which justify suspicion that ~~he or she~~ the person may be engaged in or about to engage in a crime; and

1. ~~a.~~ Upon inquiry by a peace officer, refuses to identify himself or herself by name and address; or

2. ~~b.~~ After having given his or her name and address ~~by~~ upon inquiry of a peace officer, refuses or fails to give a reasonably credible account of his or her conduct and purpose.

B. Any person who violates subsection (A) of this this section is guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars (\$750.00).

#### **Chapter 9.12 – OFFENSES AGAINST PROPERTY**

##### **9.12.020 – Motor vehicles on grass, turf, beach and in public parks or grounds prohibited; ~~Exception. penalty; exception.~~**

A. It is unlawful for any person to operate or park a motor vehicle upon any grass, turf, beach, or any area in a park or on public grounds not specifically designated for the purpose of such motor vehicle use. ~~in any park or public grounds. This law does~~ The prohibitions imposed under this section shall not apply to authorized city maintenance vehicles ~~and or~~ to authorized emergency vehicles in the performance of their applicable duties.

B. Any person who violates this section is guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars (\$750.00).

**9.12.060 – Shoplifting; penalty.**

~~A. Shoplifting is prohibited and declared to be unlawful. Any person who wilfully conceals~~  
No person shall willfully conceal or ~~wilfully takes~~ take possession of any ~~goods~~ good offered for sale by a wholesaler or retail store or other mercantile establishment, without the knowledge or consent of the owner ~~thereof~~ and with intent to convert the ~~goods~~ good to his or her own use without paying the purchase price. ~~thereof, is shoplifting. The following acts or deceptive conduct shall constitute prima facie evidence of concealing:~~

1. Hiding any good upon the person, or in a container, or otherwise removing such merchandise from full view while upon the premises;
2. Removing, changing or altering any price tag affixed to any good;
3. Transferring or moving any good upon the premises to obtain a lower price than the merchandise was offered for sale by the merchant; or
4. Abandoning or disposing of any good in such a manner that the merchant will be deprived of all or part of the value of the good.

~~For purposes of this section, the term "conceals" shall mean any act of deception done wilfully or knowingly upon or outside the premises of a wholesale or retail store or other mercantile establishment with the intent to deprive the owner therein of all or part of the value of the merchandise. The following acts or deceptive conduct are prima facie evidence of concealing:~~

- ~~A. Concealing merchandise upon the person, or in a container, or otherwise removing such merchandise from full view while upon the premises;~~
- ~~B. Removing, changing, or altering any price tag;~~
- ~~C. Transferring or moving any merchandise upon the premises to obtain a lower price than the merchandise was offered for sale by the merchant; or~~
- ~~D. Abandoning or disposing of any merchandise in such manner that the merchant will be deprived of all or part of the value of the merchandise.~~

B. Any peace officer, merchant or merchant's employee who has reasonable cause ~~for believing to believe~~ that a person has committed the offense of shoplifting as defined under this section, may detain and interrogate such person in regard thereto in a reasonable manner and for a reasonable time.

C. Except as otherwise provided by this subsection, a person who violates subsection (A) of this section shall be guilty of a misdemeanor punishable by a fine of seven hundred fifty dollars (\$750.00). Any person convicted of third or subsequent violation under subsection (A) of this section shall be guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars (\$750.00), imprisonment for not more than six (6) months, or both.

D. For purposes of this section, the term "conceal" shall mean any act of deception done willfully or knowingly upon or outside the premises of a wholesale or retail store or other mercantile establishment with the intent to deprive the owner therein of all or part of the value of the merchandise.

Section 3. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 4. This ordinance shall be in full force and effect upon approval and publication.

**FIRST READING:** \_\_\_\_\_

**SECOND READING:** \_\_\_\_\_

**THIRD AND FINAL READING:** \_\_\_\_\_

\_\_\_\_\_  
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

\_\_\_\_\_  
KRISTINA F. JONES, CITY CLERK

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